

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

In the matter of an Appeal made
under Section 331 of the Code of
Criminal Procedure Act No.15 of
1979.

**Court of Appeal Case No.
CA/HCC/0221/2023
High Court of Ratnapura
Case No. HCR/53/2014**

Kankanamlage Nihal
Gunathilake

ACCUSED-APPELLANT

Vs.

The Hon. Attorney General
Attorney General's Department
Colombo-12

COMPLAINANT-RESPONDENT

BEFORE : **P. Kumararatnam, J.
R. P. Hettiarachchi, J.**

COUNSEL : **O.L.Premaratne for the Appellant.
Dileepa Peiris, PC, ASG for the
Respondents.**

ARGUED ON : **22/05/2026**

DECIDED ON : **09/07/2026**

JUDGMENT

P. Kumararatnam, J.

The above-named Appellant was indicted by the Attorney General in the High Court of Ratnapura for committing three counts of rape on Viyannalage Dinusha Miyanawala between 01/01/2009 and 31st of December, an offence punishable under Section 364(2) of the Penal Code as amended.

After the trial the Appellant was convicted for the 1st count and was sentenced to 10 years of rigorous imprisonment with a fine of Rs.15000/-, in default of which simple imprisonment for six months was imposed. In addition, Rs.300,000/- was imposed as compensation payable to the victim with a default sentence of 01-year simple imprisonment.

The Appellant was acquitted from the 2nd and 3rd charges by the Learned High Court Judge of Ratnapura.

Being aggrieved by the aforesaid conviction and sentence, the Appellant preferred this appeal to this court. The Appellant was present in Court during the hearing of this appeal, as he was granted bail.

On behalf of the Appellant the following Grounds of Appeal are raised.

1. Judgment is not supported by the evidence.
2. Judgment is against the law.

The Facts of this case *albeit* briefly are as follows:

The prosecutrix, PW1 Dinusha was about 11 years old when she had encountered these unpleasant incidents. She had studied at Weheragoda Vidyalaya from grade 4 to 5. The Appellant was the school principal at that time. When she was in grade 4, the Appellant had first raped her at the Weheragoda School. This was continued and the Appellant had raped her at her residence too. The Appellant had a vegetable plot close to the house of the victim. On the way to his garden, the Appellant had come to the victim's house and had taken the Victim to the bedroom and indulged in sexual intercourse several times. He had performed anal intercourse as well.

Due to fear and tender age, the victim had not divulged the incident to anyone. After going to the Kalupahana School, she had divulged the incident for the first time to a friend, namely Lakshika Kumari. She had also divulged this to a school teacher. The teacher had reported the matter to the police. According to the victim, the first incident had occurred in the year 2009.

In the cross examination, the victim had vividly explained how the Appellant had raped her after she was placed on the teacher's table. The Appellant had instructed her to come to the Grade 1 classroom, which was separate from the classrooms of Grade 2,3,4 and 5. Thereafter, the Appellant had committed the offence.

It was revealed that the victim was raped by the Accused before she had attained the age of puberty, which resulted in vaginal bleeding of the Victim. The victim had accompanied the police and identified the bedroom in which the rape had occurred as well as the respective premises of Weheragoda Vidyalaya.

According to PW2, her step mother, she only came to know about the incident when police officers had come to her house. At this time, she had come to know that the Appellant had threatened the victim with death if she divulges the incident to anybody. The witness stated that the Accused had

come to inspect the Victim's school books, and as he had previously been her teacher, they did not perceive his visits as inappropriate.

According to PW04, Dhammika Kumari, the school teacher had received the first information about the rape incident when the victim was in grade 7 or 8. Further, the teachers of the school had observed that the victim had not gone for lunch during the break between term tests. When the victim was inquired as to why she is not going for lunch, the victim had started to cry and had informed about the incidents that had happened to her. Immediate action was taken to inform this to the police.

PW11 the JMO who had examined the victim confirmed that the victim had been subjected to vaginal penetration which corroborated the history narrated to him by her.

The Appellant, in his dock statement, admitted to visiting the victim's house several times to meet the Victim's stepfather. The Appellant claimed he visited the Victim's residence on three occasions; firstly, to request a group of drummers from the Victim's stepfather, secondly to repair an old knot drum belonging to the school and thirdly to request for a traditional mask.

Justice Dheeraratne in **Sunil and Another v. The Attorney General** [1986] 1 Sri. L. R. 230 held that:

“Corroboration is only required or afforded if the witness requiring corroboration is otherwise credible. If the evidence of witness requiring corroboration is not credible his testimony should be rejected and the accused be acquitted. Seeking corroboration of a witness's evidence should not be used as a process of inducing belief in such evidence where such evidence is not credible.

It is very dangerous to act on the uncorroborated testimony of a woman victim of a sex offence but if her evidence is convincing such evidence could be acted on even in the absence of corroboration.”

In **Bhoginbhai Hirjibhai v. State of Gujarat** [1983] AIR 753 Indian Supreme Court stated that:

“refusal to act on the testimony of a victim of sexual assault in the absence of corroboration as a rule, is adding insult to injury.”

In the case of **State Of Himachal Pradesh v Manga Singh** (2018) INSC 1120 it was held:

“The conviction can be sustained on the sole testimony of the prosecutrix, if it inspires confidence. The conviction can be based solely on the solitary evidence of the prosecutrix and no corroboration be required unless there are compelling reasons which necessitate the courts to insist for corroboration of her statement. Corroboration of the testimony of the prosecutrix is not a requirement of law; but a guidance of prudence under the given facts and circumstances. Minor contradictions or small discrepancies should not be a ground for throwing the evidence of the prosecutrix.”

Guided by the above-mentioned judgments related to burden of proof in a rape case, I am going to consider the appeal grounds advanced by the Appellant in this case.

The victim was 11 years old when she was raped by the Appellant. She has given evidence without any contradictions. Considering the painful trauma that she had undergone at a tender age, nobody in such a situation can be expected to disclose all the facts accurately. The victim had only informed about the incident to her friend in the year 2011, although the first incident of rape had happened to her when she was in grade 4, that is in the year 2009. The Learned High Court Judge had very correctly calculated the age of the victim at the time of the first incident.

There is no ambiguity with regard to the date of incident. The charges had clearly mentioned what had happened within the year of 2009. Hence, no prejudice had been caused to the Appellant. As this was a direct indictment case, the victim had given evidence 10 years after the date of the offence.

In **Bhoginbhai Hirjibhai v. State of Gujarat** (supra) the court held further:

“In regard to exact time of an incident, or the time duration of an occurrence, usually, people make their estimates by guess work on the spur of the moment at the time of interrogation. And one cannot expect people to make very precise or reliable estimates in such matters.”

“It is unrealistic to expect a witness to be a human tape recorder.”

In **R. v. Dossi** 13 Cr.App.R. 158 the court held that:

“A date specified in an indictment is not a material matter unless it is an essential part of the alleged offence; the defendant may be convicted although the jury finds that the offence was committed on a date other than that specified in the indictment. Amendment of the indictment is unnecessary, although it will be good practice to do so (provided that there is no prejudice below) where it is clear on the evidence that if the offence was committed at all, it was committed on the day other than that specified.”

In the case of **Court of Appeal Case No. CA/HCC/0431/2019** decided on 02.12.2022, it was held by his Lordship Justice Priyantha Fernando that:

“Child victims in sexual crimes of this nature, are often reluctant to inform their parents or guardians about the abuse immediately unless they are compelled to do so. Most importantly, one cannot expect a child of tender age to keep a record of the exact date on which he/she was abused or raped, unless there is some special significance on the date in which the abuse took place.”

In the case of **Sarath Menikpura v. Attorney General**, CA/HCC/61/20, Decided On 27.06.2024, Wickum A. Kalurachchi, J held that;

“Delay in making a complaint about an offence committed against a child is different. In the case at hand, the victim girl kept silent without informing anybody about the rape or sexual harassment committed by her father for three and a half years. A child’s reason for silence has been explained in the Crown Court Compendium Part I (published in May 2016 - page 10-22), as follows:

“Experience has shown that children may not speak out about something that has happened to them for a number of reasons. A child may

- be confused about what has happened or about whether or not to speak out; blame him/ herself for what has happened or be afraid that he/ she will be blamed for it and punished;*
- be afraid of the consequences of speaking about it, either for him/herself and/ or for another member of the family;*
- may feel that s/ he may not be believed;*
- may have been told to say nothing and threatened with the consequences of doing so;*
- may be embarrassed because s/he did not appreciate at the time that what was happening was wrong, or because s/he enjoyed some of the aspects of the attention they were getting;*
- simply blank what happened out and get on with their lives until the point comes when they feel ready or the need to speak out {e.g. for the sake of a younger child who s/ he feels may be at risk};*
- may feel conflicted: loving the abuser but hating the abuse.”*

As the Appellant had been given sufficient notice regarding the period under which he had been indicted and plausible evidence was led through

witnesses regarding the period, I conclude that this has not caused any prejudice or failure of justice.

In this case the incident had happened when the victim was 11 years old and when she gave evidence before the High Court, she was 21 years of age, and married.

According to the victim, when she went to the evening coaching class, the Appellant had taken her to another class room and had used the flat surface of a table to commit the offence.

In this case, the victim had clearly given evidence on why she lodged her complaint 04 years after the incident. The Learned High Court Judge has very correctly analysed and accepted the evidence of the victim as true and cogent. Hence, it is incorrect to argue that the Learned High Court Judge had not considered the delay in making the complaint to the police by the victim.

In the case of **Wickremasuriya v. Dedoleena and others** 1996 [2] SLR 95 Jayasuriya J held that;

“A judge, in applying the Test of Probability and Improbability relies heavily on his knowledge of men and matters and the patterns of conduct observed by human beings both ingenious as well as those who are less talented and fortunate”

His Lordship further held that;

“If the contradiction is not of that character the Court ought to accept the evidence of witnesses whose Evidence is otherwise cogent having regard to the Test of Probability and Improbability and having regard to his demeanour and deportment manifested by witnesses. Trivial contradictions which do not touch the core of a party’s case should not be given much significance, especially when the probabilities factor echoes in favour of the version narrated by an applicant”

In **Iswari Prasad v. Mohamed Isa** 1963 AIR (SC) 1728 at 1734 His Lordship held that;

“In considering the question as to whether evidence given by the witness should be accepted or not, the court has, no doubt, to examine whether the witness is an interested witness and to enquire whether the story deposed to by him is probable and whether it has been shaken in cross-examination. That is - whether there is a ring of truth surrounding his testimony.”

In State of **Uttar Pradesh v. M. K. Anthony** [AIR 1985 SC 48] the court held that:

“While appreciating the evidence of a witness, the approach must be whether the evidence of the witness read as a whole appears to have a ring of truth. Once that impression is formed, it is undoubtedly necessary for the court to scrutinise the evidence more particularly keeping in view the deficiencies, draw-backs and infirmities pointed out in the evidence as a whole and evaluate them to find out whether it is against the general tenor of the evidence given by the witness and whether the earlier evaluation of the evidence is shaken as to render it unworthy of belief.”

In this case the victim had given evidence without any contradiction or omission in the trial. Therefore, her evidence has passed the test of probability and credibility.

The Learned High Court Judge in his judgement has considered the defence position advanced in this case. He has given reasons as to why he is rejecting the defence’s version and accepting the prosecution’s version. There are no unreasonable grounds on which the Learned High Court Judge had rejected the defence. The sole reason for the acceptance of the prosecution’s case is that the prosecution’s case has passed all the tests without any doubt or ambiguity.

As the Learned High Court Judge had correctly analysed all the evidence presented before him, he could come to the conclusion that the prosecution proved the case against the Appellant beyond a reasonable doubt in respect of the 1st count.

Rape is generally regarded as one of the gravest forms of sexual offences. It violates and degrades a fellow human being. The physical and emotional effects of the trauma on the victim are likely to be severe.

In the case of **State Of Himachal Pradesh vs Shree Kant Shekari** (2004) 8 SCC 153 it was noted:

“Sexual violence apart from being a dehumanizing act is an unlawful intrusion on the right of privacy and sanctity of a female. It is a serious blow to her supreme honour and offends her self-esteem and dignity i.e. it degrades and humiliates the victim and where the victim is a helpless innocent child or a minor, it leaves behind a traumatic experience. A rapist not only causes physical injuries but more indelibly leaves a scar on the most cherished possession of a woman i.e. her dignity, honour, reputation and not the least her chastity. Rape is not only a crime against the person of a woman; it is a crime against the entire society. It destroys, as noted by this Court in Shri Bodhisattwa Gautam v. Miss Subhra Chakraborty (AIR 1996 SC 922), the entire psychology of a woman and pushes her into deep emotional crisis. It is a crime against basic human rights, and is also violative of the victim's most cherished of the Fundamental Rights, namely, the Right to Life contained in Article 21 of the Constitution of India, 1950 (in short, the 'Constitution') The Courts are, therefore, expected to deal with cases of sexual crime against women with utmost sensitivity. Such cases need to be dealt with sternly and severely.”

In this case, a child was raped. Society cannot condone any form of sexual assault on children. The courts have a positive obligation under the law to

protect them from sexual abuse. Hence, sexual offenders must be dealt with severely.

Upon perusal of the judgement of the trial judge, I am of the view that the appeal grounds advanced by the Appellant are devoid of any merit and I see no reason to interfere with the judgment dated 30/06/2023.

Therefore, the conviction and the sentence are affirmed and the appeal is dismissed.

The Learned High Court Judge of Ratnapura is hereby directed to issue notice on the Appellant to appear before the High Court, as he is on bail pending appeal, and to comply with this judgement.

The Registrar of this Court is direct to send this judgement to High Court of Ratnapura along with the original case record.

JUDGE OF THE COURT OF APPEAL

R. P. Hettiarachchi, J.

JUDGE OF THE COURT OF APPEAL